177 **23.10.2026**
Court No.07. (NMD/D.Hira)
(Allowed)

CRM (A) 3885 of 2026

In Re: - An application for anticipatory bail under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023 in connection with **Jalangi Police Station Case No. 246 of 2026** dated **08.06.2026** under Sections **109/115(2)/117(1)/118(2)/126(2)/315(2)/3(5)** of the Bharatiya Nyaya Sanhita, 2023

- And -

In the matter of: - **Abdul Momin Mondal @ Momin Mondal @ Momin Sk.**

.....petitioner.

Mr. Amanul Islam,
Mr. Sourav Mukherjee.

... for the petitioner

Mr. Gouranga Kumar Das, ld. APP.,
Mr. Amal Kumar Datta,
Mr. Utsav Dutta.

... for the State

1. The petitioner and the State are represented by their respective learned counsel.
2. It is submitted on behalf of the petitioner that the alleged incident occurred on account of a family dispute. It is further submitted that the present accused petitioner has been falsely implicated in the instant case and as such, the instant application for anticipatory bail may be considered favourably.
3. Such prayer is vehemently opposed by the learned Advocate appearing on behalf of the respondent State.

4. Attention of this Court is drawn to the injury report of the victim, vis-à-vis the bed head ticket as well as the statement of the victim as recorded under Section 180 of the B.N.S.S.
5. On careful perusal of the entire materials as placed before this Court and after hearing the learned Advocate for the contending parties, it appears that admittedly the name of the accused/petitioner appears both in the written complaint as well as in the statement of the victim as mentioned (supra).
6. It further appears that on account of the alleged incident the victim suffers head injury.
7. However, considering the fact that the victim of the alleged incident was discharged from hospital within four days from the alleged incident and keeping in mind, that such head injury is so much serious, this Court is inclined to allow the prayer for anticipatory bail.
8. In view of such, the prayer for bail of the accused/petitioner is allowed.
9. It is thus ordered, in the event of arrest, the present accused/petitioner, namely**, Abdul Momin Mondal @ Momin Mondal @ Momin Sk.** may find bail of Rs.10,000/- with two registered sureties of Rs.5,000/- each, subject to the satisfaction of the learned Chief Judicial Magistrate, Murshidabad and also on condition that the present accused/petitioner shall abide the provision of Section 482(2) of the BNSS.

10. It is further directed that the present accused/petitioner shall meet the Investigating Officer of this case once in a week till conclusion of the investigation.

11. With the aforementioned, **CRM (A) 3885 of 2026** is **allowed** and **disposed of**.

12. Urgent Photostat certified copy of this order, if applied for, be given to the parties upon compliance of all requisite formalities.

(Partha Sarathi Sen, J.)